

The remaining issue is the naming of Defendant in the complaint. Here, the court grants leave to make a non-substantive amendment to the complaint, specifically to correct Defendant's name.

Plaintiff is order to file the amended complaint correcting Defendant's name within ten (10) days of this court's order.

Motion to Strike Portions of Plaintiff's Complaint

Defendant Dignity Health dba Mercy Medical Center Merced's motion to strike is DENIED.

As a preliminary note, the court finds the typographical error regarding the incorrectly named defendant to be harmless and this was not considered in the below ruling.

As to attorney's fees, Plaintiff's fourth cause of action has alleged a cause of action against Defendant pursuant to Civil Code section 51.9. Although section 51.9 does not contain an express attorney's fees provision within its own text, it expressly incorporates the remedies set forth in Civil Code Section 52, subdivision (b), which explicitly provides for attorney's fees, as determined by the court. (Civ. Code § 52, subd. (b)(3).)

Regarding the prayer for punitive damages, the prayer is for "For exemplary damages only on claims and against defendants for which such damages may be pleaded and recovered without prior leave of Court; and, as to any claim governed by Code of Civil Procedure section 425.13, for leave to amend to seek punitive or exemplary damages if and when authorized by law." (Complaint, Prayer ¶ (d), 19:1-4.)

Although the phrasing is perhaps inartful, the prayer is limited to those claims and defendants for which punitive damages may be pleaded without leave of court. As to Code of Civil Procedure section 425.13, the prayer provides that Plaintiff will seek leave to amend to plead punitive damages if and when authorized by law. Absent court approval pursuant to Code of Civil Procedure section 425.13, the prayer for punitive damages is not applicable to Defendant Dignity Health dba Mercy Medical Center Merced.

26CV-03390

Petition of: Rafael Daniel Ponce Sanchez

Order to Show Cause Re: Name Change

Appearance required. Upon presentation of proof of publication of the petition, and absent objection at the time of the hearing, the petition for name change will be GRANTED.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion / Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, August 04, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05742	Crown Asset Management, LLC vs Rosemary Musquez
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Claim of Exemption

The Judgment Debtor's claim of exemption is GRANTED IN PART.

The Judgment Debtor's wage garnishment is modified to be \$100 per paycheck.
